

1 ENGROSSED SENATE
2 BILL NO. 1734

By: Seifried of the Senate

3 and

4 Moore of the House

5
6 An Act relating to schools; stating legislative
7 findings; creating the Oklahoma Responsible
8 Technology in Schools Act; providing short title;
9 providing purpose; defining terms; directing certain
10 artificial intelligence tools to be implemented in
11 public school districts under certain direction;
12 requiring artificial intelligence use to comply with
13 certain provisions; directing school districts to
14 provide certain parents and legal guardians with
15 certain written disclosure with certain frequency;
16 providing for contents of disclosure; allowing a
17 parent or legal guardian to opt a student out of
18 certain participation; prohibiting such student from
19 being penalized or denied certain access; directing
20 the State Department of Education to develop and make
21 available guidance regarding certain use of
22 artificial intelligence and emerging technologies;
23 requiring school district boards of education to
24 adopt certain policy prior to the beginning of
certain school year; providing for minimum contents
of policy; providing certain construction; providing
for promulgation of rules; providing for
codification; providing an effective date; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 11-120 of Title 70, unless there
is created a duplication in numbering, reads as follows:

1 A. The Legislature finds that technology in the classroom
2 including artificial intelligence is increasingly present and
3 pervasive in educational environments. Classroom teachers play an
4 essential and irreplaceable role in a student's educational career,
5 and artificial intelligence tools, when used in classrooms, should
6 supplement educator-led instruction, not supplant it. The absence
7 of consistent guardrails for student-facing emerging technologies
8 may increase risks to student data privacy and instructional
9 integrity.

10 B. This act shall be known and may be cited as the "Oklahoma
11 Responsible Technology in Schools Act". The purpose of the act is
12 to provide clarity, accountability, and consistency by:

13 1. Establishing principles and guardrails for the appropriate
14 and responsible use of artificial intelligence in public school
15 districts in this state;

16 2. Protecting student data, privacy, and educational integrity;

17 3. Preserving local control and educator discretion; and

18 4. Supporting transparency to students and families.

19 C. As used in this act:

20 1. "Artificial intelligence" or "AI" means a system or
21 application consistent with the definition set forth in 15 U.S.C.,
22 Section 9401(3);

1 2. "Classroom AI tool" means an artificial intelligence
2 application used to support instruction, learning activities,
3 assessment assistance, or educator workflows in a school setting;

4 3. "Educator-directed AI use" means use of an artificial
5 intelligence tool under the supervision and professional judgment of
6 a teacher or school employee;

7 4. "Student-facing AI tool" means an artificial intelligence
8 tool designed for use by students that provides AI-generated
9 content, feedback, or assistance as part of an instructional
10 activity; and

11 5. "Human-in-the-loop" means that an educator or authorized
12 school employee maintains oversight, review, and final decision-
13 making authority over outputs generated by an artificial
14 intelligence tool.

15 D. Artificial intelligence tools used for instructional or
16 educational purposes in public school districts in this state shall
17 be implemented under the direction of an educator, subject to
18 applicable law and the policy of the school district board of
19 education.

20 E. If artificial intelligence is used in a public school
21 district in this state, such use shall be subject to the following:

22 1. All classroom AI tools shall be deployed through educator-
23 directed AI use. The responsibility for decisions informed by
24

1 artificial intelligence shall remain with school employees and shall
2 not be delegated to an artificial intelligence system or vendor;

3 2. Classroom AI tools and student-facing AI tools shall operate
4 with a human-in-the-loop. Outputs generated by artificial
5 intelligence shall be reviewed by an educator or authorized school
6 employee prior to use in instruction, feedback, assessment, or
7 decision-making;

8 3. Artificial intelligence tools shall not be used as the
9 primary basis for student grading, discipline, placement, promotion,
10 retention, or other high-stakes educational decisions;

11 4. Student-facing AI tools shall be appropriate to the age and
12 developmental level of students and shall be used only for clearly
13 defined educational or instructional purposes;

14 5. Artificial intelligence tools shall comply with applicable
15 federal and state student data privacy and security laws including
16 the Family Educational Rights and Privacy Act of 1974 (FERPA) and
17 shall meet recognized industry standards or otherwise stringent
18 private audit and security standards. School districts shall take
19 reasonable steps to minimize the amount of student data shared with
20 artificial intelligence tools; and

21 6. School districts in this state shall address transparency
22 regarding the instructional use of artificial intelligence including
23 communication to students and families regarding the role and
24 limitations of such tools.

1 F. Each school district shall provide parents or legal
2 guardians of students enrolled in the district with a written
3 disclosure not less than annually. The disclosure shall identify:

- 4 1. All artificial intelligence tools in use in the district;
- 5 2. The vendors providing the artificial intelligence tools;
- 6 3. The categories of student data collected;
- 7 4. The extent to which student data is shared; and
- 8 5. The educational purpose for which each artificial
9 intelligence tool is used.

10 G. The parent or legal guardian of a student enrolled in a
11 school district may provide written notice opting the student out of
12 participating in student-facing AI tools at any time. Students who
13 opt out shall not be academically penalized or denied access to core
14 instructional content.

15 H. The State Department of Education shall develop and make
16 available guidance regarding the responsible use of artificial
17 intelligence and emerging technologies for public school districts
18 in this state.

19 I. Prior to the beginning of the 2027-2028 school year, each
20 school district board of education shall adopt and maintain a policy
21 governing the use of artificial intelligence and emerging
22 technologies. The policy shall at a minimum:

- 23 1. Identify roles or school employees responsible for approving
24 and overseeing the use of artificial intelligence tools;

1 2. Address appropriate instructional uses and prohibited uses;
2 3. Address student data protection and data minimization
3 practices;
4 4. Address transparency to students and families;
5 5. Provide for periodic review and updates; and
6 6. Comply with the provisions set forth in subsection E of this
7 section and the guidance developed by the State Department of
8 Education.

9 J. Nothing in this section shall be construed to:

10 1. Require a public school district in this state to use
11 artificial intelligence in any school; or

12 2. Limit the authority of school district boards of education
13 to make decisions regarding instructional methods or technology use.

14 K. The State Board of Education may promulgate rules to
15 implement the provisions of this section.

16 SECTION 2. This act shall become effective July 1, 2026.

17 SECTION 3. It being immediately necessary for the preservation
18 of the public peace, health, or safety, an emergency is hereby
19 declared to exist, by reason whereof this act shall take effect and
20 be in full force from and after its passage and approval.

1 Passed the Senate the 23rd day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives